
BEFORE THE IOWA BOARD OF BEHAVIORAL SCIENCE

IN THE MATTER OF	)	CASE NO. 12-018
	)	
LOWELL ROUTLEY,	)	SETTLEMENT AGREEMENT AND
	)	FINAL ORDER
RESPONDENT.	)	

Pursuant to Iowa Code sections 17A.10 and 272C.3(4) (2013), the Iowa Board of Behavioral Science ("Board") and Lowell Routley ("Respondent") enter into the following Settlement Agreement and Final Order ("Order") to settle a contested case currently pending before the Board.

The allegations contained in the Statement of Charges against Respondent shall be resolved without proceeding to hearing, as the Board and Respondent stipulate as follows:

1. Respondent was issued Iowa license 00009 to practice as a mental health counselor.
2. Respondent's license is active and will expire on September 30, 2014.
3. The Board has jurisdiction over the parties and the subject matter of these proceedings.
4. A Notice of Hearing and Statement of Charges was filed against the Respondent on November 7, 2013. A contested case hearing in this matter is scheduled for February 6, 2014.
5. Respondent has chosen not to contest the allegations in the Statement of Charges and acknowledges that the allegations, if proven in a contested case proceeding, would constitute grounds for the discipline agreed to in this Order.
6. Execution of this Order constitutes the resolution of a contested case. Respondent has a right to a hearing on the charges, but waives his right to hearing and all attendant rights, including the right to appeal, by freely and voluntarily agreeing to this Order. Once entered, this Order shall have the force and effect of a disciplinary order entered following a contested case hearing.
7. Respondent is freely and voluntarily entering into this Order.
8. Respondent acknowledges that he has a right to be represented by counsel on this matter.
9. The State's legal counsel may present this Order to the Board *ex parte*.
10. This Order is subject to approval by a majority of the full Board. If the Board fails to approve this Order, it shall be of no force or effect to either the Board or Respondent. If the Board approves this Order, it shall be the full and final resolution of this matter.

11. This Order shall be part of the permanent record of Respondent and shall be considered by the Board in determining the nature and severity of any disciplinary action to be imposed in the event of any future violations.
12. This Order, when fully executed, is a public record and is available for inspection and copying in accordance with the requirements of Iowa Code chapters 22 and 272C.
13. The Board's approval of this Order shall constitute a FINAL ORDER of the Board.

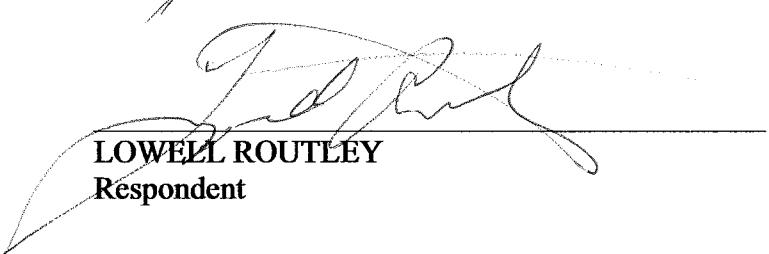
IT IS THEREFORE ORDERED:

14. Respondent's license is placed on **PROBATION** for a period of two (2) years, subject to the following terms and conditions:
 - a. Within thirty (30) days of Board approval of this Order, Respondent shall submit a proposed practice monitor and practice monitoring plan to the Board for approval. The proposed practice monitor shall be a licensed mental health counselor. Practice monitoring shall commence upon Board approval of the monitor and the plan. Respondent shall provide the practice monitor with a copy of the Notice of Hearing and Statement of Charges as well as this Settlement Agreement. Respondent shall meet in a face-to-face setting with the monitor on a monthly basis during the probation period to review and discuss the Board's rules on ethics and professional boundaries, the Code of Ethics of the American Counseling Association, hypothetical ethical issues, and ethical issues that arise in Respondent's practice. Respondent's practice monitor shall submit quarterly reports to the Board describing the dates of meetings held with Respondent, a summary of the discussion held at each meeting, the practice monitor's recommendations for further mentoring and monitoring, if any, and any other information the practice monitor deems relevant for the Board's review. Said quarterly reports are due on March 5, June 5, September 5, and December 5 of each calendar year during the probationary period. Respondent is responsible for all costs associated with practice monitoring.
 - b. Within sixty (60) days of Board approval of this Order, Respondent shall engage in therapy to address this disciplinary action and the circumstances leading to the discipline. Respondent shall engage in any follow-up therapy recommended in the initial session. Respondent's therapist shall submit a letter to the Board as proof of completion of this requirement.
 - c. Within six (6) months of Board approval of this Order, Respondent shall complete ten (10) hours of continuing education in the areas of professional boundaries or ethics. Respondent shall submit certificates to the Board as proof of completion of this requirement. These hours are in addition to the standard continuing education requirements for license renewal. Respondent is responsible for all costs associated with obtaining the required continuing education.
 - d. Respondent shall submit quarterly reports to the Board describing Respondent's compliance with these probationary terms and conditions. Said quarterly reports are

due on March 5, June 5, September 5, and December 5 of each calendar year during the probationary period.

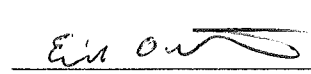
15. Should Respondent violate the terms of this Order, the Board may initiate action to impose other licensee discipline as authorized by Iowa Code chapters 272C and 154D and 645 Iowa Administrative Code chapters 13 and 33.

This Settlement Agreement and Final Order is voluntarily submitted by Respondent to the Board for its consideration on the 17 day of FEBRUARY, 2014.



LOWELL ROUTLEY
Respondent

This Settlement Agreement and Final Order is accepted by the Iowa Board of Behavioral Science on the 1st day of May, 2014.



ERIK OOSTENINK, Chairperson
Iowa Board of Behavioral Science

cc: Laura Cathelyn
Assistant Attorney General
Hoover Building, 2nd Floor
Des Moines, IA 50319

Philip Jensen
Hammer, Simon and Jensen
775 Sinsinawa Avenue
East Dubuque, IL 61025